

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahmen, Department Advocate's Office, February 21, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27429 against Police Officer Brian Henn, Tax Registry No. 950580. The case was conferenced on February 4, 2025, before Assistant Deputy Commissioner of Trials , Anne Stone, who approved Department Imposed Training. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031822BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, HENN	FIRST BRIAN	M.I.	COMMAND 069
SHIELD NO. 19752	TAX REGISTRY NO. 950580	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Brian Henn, on or about May 11, 2021, at approximately 1920, while assigned to 061 PCT and on duty, in the vicinity of the 061 PCT parking lot located at 2575 Coney Island Ave, Kings County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device, without police necessity.	DISMISSED	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Brian Henn, on or about May 11, 2021, at approximately 1920, while assigned to 061 PCT and on duty, in the vicinity of the 061 PCT parking lot located at 2575 Coney Island Ave, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

05/05/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

9/3/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, May 5, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031822 (DADS Case No. 2022-27429; CCRB Case No. 202103223) against Police Officer Brian Henn, Tax No. 950580, with the recommendation that the Charges and Specifications against Police Officer Henn be dismissed and that Police Officer Henn receive Training. Assistant Deputy Commissioner, Trials Anne E. Stone. reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

It should be noted that a downward deviation from the Department's Disciplinary System Penalty Guidelines ("Matrix") is appropriate in this matter, namely Training, given Police Officer Henn went above and beyond to acknowledge his lack of understanding of a civilian's right to record police activities to the Civilian Complaint Review Board ("CCRB"). Police Officer Hann has accepted responsibility for his actions and went so far as to telephone the CCRB investigator after his CCRB interview to explain he was mistaken on the policy.

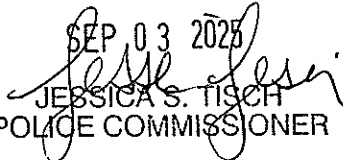


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

SEP 03 2025

JESSICA S. TISCH
POLICE COMMISSIONER